

Immigration Rules

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Immigration Rules Appendix Skilled Worker

The Skilled Worker route is for employers to recruit people to work in the UK, including in UK waters, in a specific job. A Skilled Worker must have a job offer in an eligible skilled occupation from a Home Office-approved sponsor.

A dependent partner and dependent children can apply on this route.

Skilled Worker is a route to settlement.

Health and Care ASHE salary jobs

SW A1.1. For the purpose of this Appendix “Health and Care ASHE salary job” means a job in one of the following SOC 2020 occupation codes:

- 1171 Health services and public health managers and directors

- 1231 Health care practice managers
- 1232 Residential, day and domiciliary care managers and proprietors
- 2113 Biochemists and biomedical scientists
- 2114 Physical scientists
- 3111 Laboratory technicians
- 3211 Dispensing opticians
- 3212 Pharmaceutical technicians
- 6135 Care workers and home carers
- 6136 Senior care workers;

where the applicant is sponsored, employed or engaged:

(a) by one of the following:

England

- an NHS Foundation Trust
- an NHS Trust
- the Care Quality Commission
- Health Education England
- Health Research Authority
- Human Fertilization and Embryology Authority
- Human Tissue Authority
- Medicines and Healthcare products Regulatory Agency
- National Institute for Health and Care Excellence
- NHS Blood and Transplant
- NHS Business Services Authority
- NHS Digital (the Health and Social Care Information Centre)
- NHS England (the NHS Commissioning Board)
- NHS Improvement (Monitor and the NHS Trust Development Authority)
- NHS Resolution (the NHS Litigation Authority)

- UK Health Security Agency
- a Local Authority or Clinical Commissioning Group

Wales

- a local Health Board
- Health Education & Improvement Wales
- Public Health Wales
- The Welsh Ambulance Service
- Velindre NHS Trust

Scotland

- A Health Board or Special Health Board constituted under section 2 of the National Health Service (Scotland) Act 1978
- Common Services Agency for the Scottish Health Service (established under Section 10 of that Act)
- Social Care and Social Work Improvement Scotland (known as the Care Inspectorate) established under Section 44 of the Public Services (reform) (Scotland) Act 2010
- Scottish Social Services Council established under section 43 of the Regulation of Care (Scotland) Act 2001

Northern Ireland

- A Health and Social Care Trust in Northern Ireland
- Northern Ireland Blood Transfusion Service
- Northern Ireland Guardian Ad Litem Agency
- Northern Ireland Medical and Dental Training Agency
- Northern Ireland Practice and Education Committee
- Northern Ireland Social Care Council, Patient and Client Council
- Regional Agency for Public Health and Social Well-Being (the Public Health Agency)
- Regional Business Services Organisation

- Regional Health and Social Care Board
- Regulation and Quality Improvement Authority

or

(b) to provide, or to support the provision of, regulated activities as prescribed in Schedule 1 (read with Schedule 2) to the Health and Social Care Act 2008 (Regulated Activities) Regulations 2014 (S.I. 2014/2936), and who is also employed or engaged by an institution or organisation registered with the Care Quality Commission; or

(c) for the purposes of an establishment or agency in Wales regulated under Part 2 of the Care Standards Act 2000; or

(d) for the purposes of a service regulated under Part 1 of the Regulation and Inspection of Social Care (Wales) Act 2016; or

(e) on a general medical services contract to provide primary medical services, or an agreement for the provision of primary medical services under section 50 of the NHS (Wales) Act 2006; or

(f) on a general dental services contract to provide primary dental services, or an agreement for the provision of primary dental services under section 64 of the NHS (Wales) Act 2006; or

(g) to provide care services as defined in section 47(1) of the Public Services Reform (Scotland) Act 2010 and registered under that Act; or

(h) by an organisation registered with Social Care and Social Work Improvement Scotland; or

(i) in connection with the provision of services under the National Health Service (Scotland) Act 1978 by, a party (other than a Health Board) to one of the following:

- an arrangement to provide services under section 2C of that Act
- an agreement to provide services under section 17C of that Act

- a contract to provide services under section 17J of that Act
- an arrangement to provide services under section 25, 26 or 27 of that Act; or

(j) by a General Practitioner Federation or by any entity with which the Northern Ireland Regional Health and Social Care Board has a contract or an arrangement under the Health and Personal Social Services (Northern Ireland) Order 1972 to provide Family Practitioner Services; or

(k) by a body registered with, or monitored or inspected by, the Regulation and Quality Improvement Authority; or

(l) or registered with, one of the following organisations:

- General Chiropractic Council
- General Dental Council
- General Medical Council
- General Optical Council
- General Osteopathic Council
- General Pharmaceutical Council
- Health and Care Professions Council
- Northern Ireland Social Care Council
- Nursing and Midwifery Council
- Pharmaceutical Society of Northern Ireland
- Scottish Social Services Council (under the Regulation of Care (Scotland) Act 2001)
- Social Care Wales; or

(m) an organisation providing adult social care services, meaning any services which an English Local Authority must or may provide or arrange to be provided under:

- (i) section 117 of the Mental Health Act 1983 – (After-care); or
- (ii) Part 1 of the Care Act 2014 (Care and Support).

Validity requirements for a Skilled Worker

SW 1.1. A person applying for entry clearance or permission to stay as a Skilled Worker must apply online on the gov.uk website on the specified form as follows:

- (a) for applicants outside the UK, form “Skilled Worker visa”; or
- (b) for applicants inside the UK, form “Skilled Worker”.

SW 1.2. An application for entry clearance or permission to stay as a Skilled Worker must meet all the following requirements:

- (a) any fee and Immigration Health Charge must have been paid; and
- (b) the applicant must have provided biometrics when required; and
- (c) the applicant must have provided a passport or other travel document which satisfactorily establishes their identity and nationality; and
- (d) the applicant must have a certificate of sponsorship that was issued to them by their sponsor no more than 3 months (or 90 days, where the Certificate of Sponsorship is linked to a Sponsorship Reference Number, disregarding any days during which an edit requested by a sponsor to their Sponsor a Worker submission is being reviewed) before the date of application.

SW 1.3. The applicant must be aged 18 or over on the date of application.

SW 1.4. An applicant applying for entry clearance or permission to stay, who has received an award from a Government or international scholarship agency in the 12 months before the date of application which covers both fees and living costs for study in the UK, must have provided written consent to the application from that Government or agency.

SW 1.5. If applying for permission to stay, the applicant must be in the UK on the date of application.

SW 1.5ZA. If applying for permission to stay, the applicant must not have, or have last been granted, permission:

- (a) as a Visitor; or
- (b) as a Short-term student; or
- (c) as a Parent of a Child Student; or
- (d) as a Seasonal Worker; or
- (e) as a Domestic Worker in a Private Household; or
- (f) outside the Immigration Rules.

SW 1.5A. An applicant who is applying for permission to stay and has, or last had, permission as a Student, must fulfil one of the Conditions A, B or C below on the date of application:

- (a) Condition A: the applicant must have completed the course of study for which the Confirmation of Acceptance for Studies was assigned (or a course to which ST 27.3 of Appendix Student applies); or
- (b) Condition B:
 - (i) the applicant must be studying a full-time course of study at degree level or above with a higher education provider which has a track record of compliance; and
 - (ii) the Certificate of Sponsorship in SW 1.2(d) must have a start date no earlier than the course completion date; or
- (c) Condition C:
 - (i) the applicant must be studying a full-time course of study leading to the award of a PhD with a higher education provider which has a track record of compliance; and
 - (ii) the Certificate of Sponsorship in SW 1.2(d) must have a start date no earlier than 24 months after the start date of that course.

SW 1.6. An application which does not meet all the validity requirements for a Skilled Worker may be

rejected as invalid and not considered.

Suitability requirements for a Skilled Worker

SW 2.1. The applicant must not fall for refusal under Part Suitability.

SW 2.2. If applying for permission to stay the applicant must not be:

- (a) in breach of immigration laws, except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded; or
 - (b) on immigration bail.
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Eligibility requirements for a Skilled Worker

Entry requirements for a Skilled Worker

SW 3.1. A person seeking to come to the UK as a Skilled Worker must apply for and obtain entry clearance as a Skilled Worker before they arrive in the UK.

SW 3.2. A person applying for entry clearance as a Skilled Worker must, if Appendix Tuberculosis applies, provide a valid medical certificate confirming that they have undergone screening for active pulmonary tuberculosis and that this tuberculosis is not present in them.

SW 3.3 A person must not be applying for entry clearance as a Skilled Worker as a national or citizen of Afghanistan.

Points requirement for a Skilled Worker

SW 4.1. The applicant must be awarded all 50 points in the table below. Details of how these points are awarded are set out in SW 5.1. to SW 7.4.

Mandatory points requirements	Relevant rules	Points
Sponsorship	SW 5.1. to SW 5.7.	20
Job at an appropriate skill level	SW 6.1. to SW 6.5.	20
English language skills at level B2 or, where the applicant's most recent permission was as a Skilled Worker and which was granted subject to a requirement at level B1, level B1	SW 7.1. to SW 7.3.	10

SW 4.2. The applicant must be awarded 20 points from one of the options in the table below and for the purpose of meeting these points:

(a) an applicant can only be awarded points from options A to E, unless they meet the requirements in (b) or (c).

(b) An applicant can only be awarded points from options F to J if:

(i) they are being sponsored for a Health and Care ASHE salary job; or

(ii) the date of application is before 4 April 2030, they were granted permission as a Skilled Worker under the rules in place before 4 April 2024, and they have had continuous permission as a Skilled Worker since then (except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded).

(c) An applicant can only be awarded points from option K if they are being sponsored for a job in an appropriate eligible SOC 2020 occupation code listed in Table 3 or Table 3a of Appendix Skilled Occupations.

(d) An applicant can be awarded points from option F if:

- (i) they are being sponsored for a job in the SOC 2020 occupation code “3314 Prison service officers (below principal officer)”; and
- (ii) the date of application is before 1 January 2028; and
- (iii) the end date of the certificate of sponsorship is not more than three years after the start date.

SW 4.3. Details of how these points are awarded are set out in the table and in SW 8.1. to SW 13.3. The salary for each option will be considered as set out in SW 14.1. to SW 14.5.

SW 4.4. If the requirements for the relevant option are met, the applicant will be awarded 20 points. However, no points will be awarded if the applicant is not also being awarded the 20 points for sponsorship under SW 5.7. and the 20 points for a job at the appropriate skill level under SW 6.4.

Option	Requirements	Relevant further rules	Points
A	The applicant's salary equals or exceeds both: • £41,700 per year; and • the going rate for the SOC 2020 occupation code.	SW 8.1.	20
B	The applicant has a PhD in a subject relevant to the job and their salary equals or exceeds both: • £37,500 per year; and • 90% of the going rate for the SOC	SW 9.1. to SW 9.4	20

Option	Requirements	Relevant further rules	Points
	2020 occupation code.		
C	The applicant has a PhD in a STEM subject relevant to the job and their salary equals or exceeds both: • £33,400 per year; and • 80% of the going rate for the SOC 2020 occupation code.	SW 10.1. to SW 10.3.	20
D	The applicant is being sponsored for a job on the Immigration Salary List and their salary equals or exceeds both: • £33,400 per year; and • the going rate for the SOC 2020 occupation code	SW 11.1. to SW 11.3.	20
E	The applicant is a new entrant at the start of their career and their salary equals or exceeds both: • £33,400 per year and • 70% of the going rate for the SOC 2020 occupation code.	SW 12.1. to SW 12.3.	20
F	The applicant's salary equals or	SW 8.1	20

Option	Requirements	Relevant further rules	Points
	exceeds both: • £31,300 per year; and • the going rate for the SOC 2020 occupation code.		
G	The applicant has a PhD in a subject relevant to the job and their salary equals or exceeds both: • £28,200 per year; and • 90% of the going rate for the SOC 2020 occupation code.	SW 9.1 to 9.4	20
H	The applicant has a PhD in a STEM subject relevant to the job and their salary equals or exceeds both: • £25,000 per year; and • 80% of the going rate for the SOC 2020 occupation code.	SW 10.1 to 10.3.	20
I	The applicant is being sponsored for a job on the Immigration Salary List and their salary equals or exceeds both: • £25,000 per year; and • the going rate for	SW 11.1. to 11.3.	20

Option	Requirements	Relevant further rules	Points
	the SOC 2020 occupation code.		
J	The applicant is a new entrant at the start of their career and their salary equals or exceeds both: • £25,000 per year; and • 70% of the going rate for the SOC 2020 occupation code.	SW 12.1. to 12.3.	20
K	The applicant is being sponsored for a job in a listed health or education occupation and their salary equals or exceeds both: • £25,000 per year; and • the going rate for the SOC 2020 occupation code.	SW 13.1. to 13.3.	20

Points for sponsorship (mandatory)

SW 5.1. The applicant must have a valid Certificate of Sponsorship for the job they are planning to do; which to be valid must:

- (a) confirm the applicant's name, that they are being sponsored as a Skilled Worker, details of the job and salary the sponsor is offering them and PAYE details if HM Revenue and Customs (HMRC) requires income tax and National Insurance for the sponsored job to be paid via PAYE; and

(b) if the application is for entry clearance, have been allocated by the Home Office to that sponsor for the specific job and salary details shown; and

(c) include a start date, stated by the sponsor, which is no more than 3 months after the date of application; and

(d) not have been used in a previous application which was either granted or refused (but can have been used in a previous application which was rejected as invalid, made void or withdrawn); and

(e) not have been withdrawn by the sponsor or cancelled by the Home Office; and (f) confirm whether or not the Academic Technology Approval Scheme (ATAS) requirement in Appendix ATAS applies.

SW 5.2. The sponsor must be authorised by the Home Office to sponsor the job in question under the Skilled Worker route.

SW 5.3. The sponsor must be listed as A-rated on the Home Office's register of licensed sponsors, unless the applicant was last granted permission as a Skilled Worker and is applying to continue working for the same sponsor as in their last permission.

SW 5.4. The sponsor must have paid in full any required Immigration Skills Charge.

SW 5.5. The decision maker must not have reasonable grounds to believe the job the applicant is being sponsored to do:

(a) does not exist; or

(b) is a sham; or

(c) has been created mainly so the applicant can apply for entry clearance or permission to stay.

SW 5.6. The decision maker must not have reasonable grounds to believe the job the applicant is being sponsored to do amounts to:

- (a) the hire of the applicant to a third party who is not the sponsor to fill a position with that party, whether temporary or permanent; or
- (b) contract work to undertake an ongoing routine role or to provide an ongoing routine service for a third party who is not the sponsor, regardless of the nature or length of any arrangement between the sponsor and the third party.

SW 5.6A. The decision maker must not have reasonable grounds to believe the job the applicant is being sponsored to do does not comply with the National Minimum Wage Regulations or the Working Time Regulations.

SW 5.7. If the requirements in SW 5.1. to SW 5.6A. are met, the applicant will be awarded 20 mandatory points for sponsorship.

Points for a job at the appropriate skill level (mandatory)

SW 6.1. Subject to SW 6.1A to SW 6.3A, the applicant must be sponsored for a job in an eligible SOC 2020 occupation code (or, where relevant, an eligible job within a SOC 2020 occupation code), listed as eligible in:

- (a) Table 1, Table 2 or Table 3 of Appendix Skilled Occupations; or
- (b) the Immigration Salary List in Appendix Immigration Salary List; or
- (c) the Temporary Shortage List in SW 6.1A; or
- (d) Table 1a, Table 2aa or Table 3a of Appendix Skilled Occupations if the applicant was granted permission as a Skilled Worker under the rules in place before 22 July 2025, and they have had continuous permission as a Skilled Worker since then (except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded); or
- (e) Table 2aa of Appendix Skilled Occupations, if the applicant is being awarded points under

options F to J in the table following SW 4.4 and meets the requirement in SW 4.2(b)(ii); or

(f) Table 2a of Appendix Skilled Occupations, if the applicant is being awarded points under options F to J in the table following SW 4.4, meets the requirement in SW 4.2(b)(ii), and is applying to work for the same sponsor as in their most recent permission; or

(g) the SOC 2020 occupation code “3314 Prison service officers (below principal officer)”, if the application is for permission to stay and:

(i) the date of application is before 1 January 2027 and the end date of the certificate of sponsorship is not more than three years after the start date; or

(ii) the applicant was last granted permission as a Skilled Worker, sponsored in the SOC 2020 occupation code “3314 Prison service officers (below principal officer)” based on a certificate of sponsorship assigned to them before 1 January 2027.

SW 6.1A. A SOC 2020 occupation code (or, where relevant, an eligible job within a SOC 2020 occupation code) is only included on the Temporary Shortage List where:

(a) it appears in the list below; and

(b) an application has been made using a certificate of sponsorship issued by a sponsor to an applicant before 31 December 2026.

Temporary Shortage List

- 1243 Managers in logistics
- 1258 Directors in consultancy services
- 3111 Laboratory technicians
- 3112 Electrical and electronics technicians
- 3113 Engineering technicians
- 3114 Building and civil engineering technicians
- 3115 Quality assurance technicians
- 3116 Planning, process and production technicians

- 3120 CAD, drawing and architectural technicians
- 3131 IT operations technicians
- 3132 IT user support technicians
- 3133 Database administrators and web content technicians
- 3412 Authors, writers and translators
- 3414 Dancers and choreographers
- 3417 Photographers, audio-visual and broadcasting equipment operators
- 3422 Clothing, fashion and accessories designers
- 3429 Design occupations not elsewhere classified – only the following job types:
 - Industrial and product designers
 - Packaging designers
 - Performance make-up artists
 - Set designers
 - Visual merchandising managers and designers
- 3512 Ship and hovercraft officers
- 3520 Legal associate professionals
- 3532 Insurance underwriters
- 3533 Financial and accounting technicians
- 3541 Estimators, valuers and assessors
- 3544 Data analysts
- 3549 Business associate professionals not elsewhere classified – only the following job types:
 - Business support officers
 - Business systems analysts
 - Contract administrators
 - Clinical coders
 - Clinical trials administrators
 - Research coordinators
- 3552 Business sales executives

- 3554 Advertising and marketing associate professionals
- 3571 Human resources and industrial relations officers
- 3573 Information technology trainers
- 4121 Credit controllers
- 4122 Book-keepers, payroll managers and wages clerks
- 4129 Financial administrative occupations not elsewhere classified – only the following job types:
 - Box office assistants
 - Grants officers
 - Mortgage administrators
 - Revenue assistants (excludes National and Local government revenue occupations)
 - Treasury assistants
- 4132 Pensions and insurance clerks and assistants
- 5213 Welding trades
- 5214 Pipe fitters
- 5223 Metal working production and maintenance fitters
- 5225 Air-conditioning and refrigeration installers and repairers
- 5231 Vehicle technicians, mechanics and electricians
- 5232 Vehicle body builders and repairers
- 5233 Vehicle paint technicians
- 5235 Boat and ship builders and repairers
- 5241 Electricians and electrical fitters
- 5242 Telecoms and related network installers and repairers
- 5244 Computer system and equipment installers and servicers
- 5245 Security system installers and repairers

- 5249 Electrical and electronic trades not elsewhere classified
- 5311 Steel erectors
- 5315 Plumbers and heating and ventilating installers and repairers
- 5319 Construction and building trades not elsewhere classified – only the following job types:
 - Builders
 - Divers
 - Fence erectors
 - Industrial climbers
 - Remotely Operated Vehicle (ROV) operators
 - Steel fixers and underpinners
- 5322 Floorers and wall tilers
- 5323 Painters and decorators
- 5330 Construction and building trades supervisors
- 8133 Energy plant operatives

SW 6.1B. If the applicant is being sponsored in the SOC 2020 occupation code “6135 Care workers and home carers” or “6136 Senior care workers”, the application must be for permission to stay, and either:

(a) (i) the applicant must have been legally working for the sponsor in one of these SOC 2020 occupation codes for at least the three months ending on the date the certificate of sponsorship was issued by the sponsor to the applicant; and

(ii) the date of application must be before 22 July 2028; or

(b) the applicant must have permission as a Skilled Worker, sponsored in either of these SOC 2020 occupations codes (or the SOC 2010 occupation codes “6145 Care workers and home carers” or “6146 Senior care workers”) (except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded).

SW 6.1C. If SW 6.1B applies and the applicant:

- (a) was previously granted permission as a Skilled Worker, sponsored in the SOC 2010 occupation code “6145 Care workers and home carers” or “6146 Senior care workers”, under the Rules in force before 11 March 2024; and
- (b) since then, has continuously had permission as a Skilled Worker, sponsored in either or both these SOC 2010 occupation codes, or SOC 2020 occupation codes “6135 Care workers and home carers” or “6136 Senior care workers” (except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded); and
- (c) is applying to continue working with the same sponsor as in their most recent grant of permission,

the Care Quality Commission regulation requirement for these occupation codes does not apply.

SW 6.2. The sponsor must choose an appropriate SOC 2020 occupation code, and the decision maker must not have reasonable grounds to believe the sponsor has chosen a less appropriate SOC 2020 occupation code for any of the following reasons:

- (a) the most appropriate SOC 2020 occupation code is not eligible under the Skilled Worker route; or
- (b) the most appropriate SOC 2020 occupation code has a higher going rate than the proposed salary; or
- (c) the most appropriate SOC 2020 occupation code is not on the Immigration Salary List and the applicant is claiming points for a job on the Immigration Salary List; or
- (d) the most appropriate SOC 2020 occupation code is not listed as “eligible for PhD points” in Table 1 of Appendix Skilled Occupations and the applicant is claiming points for an educational qualification.

SW 6.3. To support the assessment in SW 6.2., the decision maker may, in particular, consider:

- (a) whether the sponsor has shown a genuine need for the job as described; and
- (b) whether the applicant has the appropriate skills, qualifications and experience needed to do the job as described; and
- (c) the sponsor's history of compliance with the immigration system including, but not limited to, paying its sponsored workers appropriately; and
- (d) any additional information from the sponsor.

SW 6.3A. If the ATAS requirement in Appendix ATAS applies, the applicant must provide a valid ATAS certificate.

SW 6.4. If the requirements in SW 6.1. to SW 6.3A. are met, an applicant will be awarded 20 mandatory points for a job at the appropriate skill level, subject to SW 6.5.

SW 6.5. No points will be awarded for a job at the appropriate skill level if the applicant is not also being awarded the 20 mandatory points for sponsorship under SW 5.7.

Points for the English language requirement (mandatory)

SW 7.1. An applicant must show English language ability on the Common European Framework of Reference for Languages in all 4 components (reading, writing, speaking and listening) to at least the level specified by SW 4.1.

SW 7.2. The applicant must show they meet the English language requirement as specified in Appendix English Language.

SW 7.3. If the requirements in SW 7.1. to SW 7.2. are met, the applicant will be awarded 10 mandatory points for meeting the English language requirement.

Points options A and F

SW 8.1. The applicant must meet the going rate salary requirement for the SOC 2020 occupation code they are being sponsored for a job in, as shown for the relevant option in:

- (a) Table 1 or Table 1a of Appendix Skilled Occupations, if being awarded points under option A; or
- (b) Table 2, Table 2aa or Table 2a of Appendix Skilled Occupations, if being awarded points under option F.

Points options B and G

SW 9.1. The applicant must be sponsored for a job in a SOC 2020 occupation code listed as being “eligible for PhD points” in:

- (a) Table 1 or Table 1a of Appendix Skilled Occupations, if being awarded points under option B; or
- (b) Table 2, Table 2aa or Table 2a of Appendix Skilled Occupations, if being awarded points under option G;

and the applicant must meet the relevant going rate salary requirement for the SOC 2020 occupation code shown for the relevant option in that table.

SW 9.2. The applicant must have a UK PhD or other academic doctoral qualification, or an overseas academic qualification which Ecctis confirms meets the recognised standard of a UK PhD.

SW 9.3. The applicant’s sponsor must have provided a credible explanation of how the qualification is relevant to the job for which the applicant is being sponsored.

SW 9.4. If the applicant has been correctly awarded points for an educational qualification in a previous grant of permission as a Skilled Worker, the applicant does not need to provide evidence of the qualification again, but the sponsor must still have provided the explanation of how the qualification is relevant to the job for which the applicant is being sponsored.

Points options C and H

SW 10.1. The applicant must be sponsored for a job in a SOC 2020 occupation code listed as being “eligible for PhD points” in:

- (a) Table 1 or Table 1a of Appendix Skilled Occupations, if being awarded points under option C; or
- (b) Table 2, Table 2aa or Table 2a of Appendix Skilled Occupations, if being awarded points under option H;

and the applicant must meet the relevant going rate salary requirement for the SOC 2020 occupation code shown for the relevant option in that table.

SW 10.2. The applicant must meet the requirements in SW 9.2. to SW 9.4.

SW 10.3. The applicant’s sponsor must have provided a credible explanation that the qualification in question is in a Science, Technology, Engineering or Mathematics (STEM) subject.

Points options D and I

SW 11.1. The applicant must be sponsored for a job in an eligible SOC 2020 occupation code (or, where relevant, an eligible job within a SOC 2020 occupation code) listed in Appendix Immigration Salary List for the nation of the UK where that job is based, unless SW 11.2. applies.

SW 11.2. If, on or before the date the sponsor assigned the Certificate of Sponsorship to the applicant, the applicant’s job was removed from Appendix Immigration Salary List (or the previous Appendix Shortage Occupation List), both of the following conditions must be met:

- (a) the applicant’s most recent permission was as a Skilled Worker in which they were sponsored to work in a job listed in Appendix Immigration Salary List (or the previous Appendix Shortage Occupation List) under the applicable rules at that time; and

(b) the applicant is being sponsored to continue working in the same job for the same sponsor as in their previous permission.

SW 11.3. The applicant must meet the going rate salary requirement for the SOC 2020 occupation code they are being sponsored for a job in, as shown for the relevant option in:

- (a) Table 1 or Table 1a of Appendix Skilled Occupations, if being awarded points under option D; or
- (b) Table 2, Table 2aa or Table 2a of Appendix Skilled Occupations, if being awarded points under option I.

Points options E and J

SW 12.1. The applicant must meet the going rate salary requirement for the SOC 2020 occupation code they are being sponsored for a job in, as shown for the relevant option in:

- (a) Table 1 or Table 1a of Appendix Skilled Occupations, if being awarded points under option E; or
- (b) Table 2, Table 2aa or Table 2a of Appendix Skilled Occupations, if being awarded points under option J.

SW 12.2. The applicant must meet one or more of the following requirements:

- (a) the applicant must be under the age of 26 on the date of application; or
- (b) the job for which the applicant is being sponsored must be a postdoctoral position in any of the following SOC 2020 occupation codes:

- 2111 Chemical scientists
- 2112 Biological scientists
- 2113 Biochemists and biomedical scientists
- 2114 Physical scientists
- 2115 Social and humanities scientists

- 2119 Natural and social science professionals not elsewhere classified
- 2162 Other researchers, unspecified discipline
- 2311 Higher education teaching professionals; or

(c) the job for which the applicant is being sponsored must be in a UK Regulated Profession and the applicant must be working towards a recognised UK professional qualification for that profession; or

(d) the applicant must be working towards full registration or chartered status with the relevant professional body for the job for which they are being sponsored; or

(e) all of the following conditions apply:

(i) the applicant's most recent permission (disregarding any permission as a visitor) was as a Student; and

(ii) if that Student permission has expired, it must have expired less than 2 years before the date of application; and

(iii) in that Student permission or any previous permission as a Student, the applicant was sponsored to study one of the following courses (not any other qualifications of an equivalent level):

- a UK bachelor's degree; or
- a UK master's degree; or
- a UK PhD or other doctoral qualification; or
- a Postgraduate Certificate in Education; or
- a Professional Graduate Diploma of Education; and

(iv) the applicant has completed (or is applying no more than 3 months before they are expected to complete) the course in SW 12.2(e)(iii) above, or the applicant is currently studying for a PhD for which they have completed at least 12 months study in the UK, or

(f) the applicant's most recent permission (disregarding any permission as a visitor) was as a Graduate, and if that permission has expired, it must have expired less than 2 years before the date of application.

SW 12.3. Granting the application must not mean the applicant's combined permission as a Skilled Worker, Graduate and/or Tier 2 Migrant would be more than 4 years in total, whether or not the permission is for a continuous period.

Points option K

SW 13.1. The applicant must meet the going rate salary requirement for the SOC 2020 occupation code they are being sponsored for a job in (or, where relevant, the job within that SOC 2020 occupation code), as shown in Table 3, 3a, 4 or 5 of Appendix Skilled Occupations.

SW 13.2. If the applicant is being sponsored for a job in one of the following SOC 2020 occupation codes:

- 2231 Midwifery nurses
- 2232 Community nurses
- 2233 Specialist nurses
- 2234 Nurse practitioners
- 2235 Mental health nurses
- 2236 Children's nurses
- 2237 Other nursing professionals

their salary may be temporarily (for up to 8 months) less than the £25,000 per year required under points option K in either of the following circumstances:

- (a) the applicant has previously held Nursing and Midwifery Council (NMC) registration and is undertaking an NMC-approved programme with a view to returning to practice; or
- (b) the applicant is working towards NMC registration, and both of the following apply:
 - (i) the applicant has passed the NMC's English language requirements and

Computer Based Test of competence, before the date of application; and

(ii) the applicant will sit an Objective Structured Clinical Examination (OSCE) to obtain NMC registration no later than 3 months after the stated job start date.

SW 13.3. Where SW 13.2. applies:

(a) the sponsor must have confirmed that the applicant will stop being sponsored if they do not achieve full NMC registration within 8 months of the job start date (if the applicant was last granted permission to work in one of the SOC 2020 occupation codes in SW 13.2, or either of the SOC 2010 occupation codes “2231 Nurses” or “2232 Midwives”, on the Skilled Worker route, the 8 months is counted from the start date of the job they were sponsored to do in their most recent permission); and

(b) during the 8 months in (a), or until the applicant achieves NMC registration (if sooner), the applicant’s salary must be at least equal to the appropriate Agenda for Change Band 3 rate, as stated in Table 4 of Appendix Skilled Occupations.

Consideration of salary (all tradeable points options)

SW 14.1. Salary only includes guaranteed basic gross pay (before income tax and including employee pension and national insurance contributions) and other guaranteed payments which are treated exactly the same as basic gross pay for tax, pension and national insurance purposes .

SW 14.2. Salary does not include other pay and benefits, such as any of the following:

(a) pay which cannot be guaranteed because the nature of the job means that hours fluctuate; or

(b) additional pay such as shift, overtime or bonus pay, (whether or not it is guaranteed); or

- (c) employer pension and employer national insurance contributions; or
- (d) any allowances, such as accommodation or cost of living allowances; or
- (e) in-kind benefits, such as equity shares, health insurance, school or university fees, company cars or food; or
- (f) one-off payments, such as 'golden hellos'; or
- (g) any payments relating to immigration costs, such as the fee or Immigration Health Charge; or
- (h) payments to cover business expenses, including (but not limited to) travel to and from the applicant's country of residence, equipment, clothing, travel or subsistence.

SW 14.2A. Any money paid by the applicant to the sponsor (or a related organisation) will be considered as follows:

- (a) The following payments will be subtracted from salary, unless (c) applies:
 - (i) deductions from salary; or
 - (ii) repayments of loans; or
 - (iii) investments.
- (b) Any such subtractions will be averaged over the length of time the applicant is being sponsored for, for the purpose of salary considerations.
- (c) Money will not be deducted where the payment is not related to business costs, immigration costs or investment, but rather an additional benefit offer which the applicant has a genuine choice whether to take up, for example salary sacrifice arrangements.

SW 14.3. If the applicant is being sponsored to work more than 48 hours a week, subject to SW 14.3A, only the salary for the first 48 hours a week will be considered towards the salary thresholds referred to in the table following SW 4.4.

For example, an applicant who works 60 hours a week for £15 per hour will be considered to have a

salary of £37,440 (£15 x 48 x 52) per year and not £46,800 (£15 x 60 x 52).

SW 14.3A. If the applicant is being sponsored to work a pattern where the regular hours are not the same each week, resulting in uneven pay:

- (a) work in excess of 48 hours in some weeks can be considered towards the salary thresholds, providing the average over a regular cycle (which can be less than, but not more than, 17 weeks) is not more than 48 hours a week; and
- (b) any unpaid rest weeks will count towards the average when considering whether the salary thresholds are met; and
- (c) any unpaid rest weeks will not count as absences from employment for the purpose of paragraph SUI 36.1. of Part Suitability of these rules.

For example, an applicant who works a pattern of 60 hours a week for £12 per hour for two weeks, followed by an unpaid rest week, will be considered to work 40 hours a week on average and have a salary of £24,960 (£12 x 40 x 52) per year.

SW 14.3B. A worker must be paid the required salary in pay periods of at least monthly frequency, or as otherwise specified in their contract, and:

- (a) The salary paid to the worker in each pay period must equal or exceed the going rate for every hour worked in that pay period.
- (b) Subject to (c) and (d):
 - (i) where the worker is paid at a frequency of monthly or less, the salary paid to the worker over any three-month period must be at least equal to a quarter of the required annual salary; or
 - (ii) where the worker is paid more frequently, the salary paid to the worker over any 12-week period must be at least equal to 12/52 of the required annual salary.
- (c) If the worker is being sponsored to work a pattern where the regular hours are not the same each week, resulting in uneven pay, the

sponsor must confirm the working pattern and the salary over any 17-week period must be at least equal to 17/52 of the required annual salary.

(d) If the pay is below the requirements in (c) in any given period, due to salary subtractions in SW 14.2(a) being subtracted over a shorter period than the length of time the applicant is being sponsored for, the sponsor must confirm this.

SW 14.4. Going rates will be pro-rated to the applicant's working pattern, as follows:

(a) going rates for SOC 2020 occupation codes listed in Tables 1 to 2a of Appendix Skilled Occupations are based on a 37.5-hour week and will be pro-rated as follows:

(the going rate for the SOC 2020 occupation code stated in Tables 1 to 2a of Appendix Skilled Occupations) x (the number of weekly working hours stated by the sponsor ÷ 37.5)

(b) where an applicant's salary is required to be 70%, 80% or 90% of the going rate, the resulting figure from the calculation in (a) will be multiplied by 0.7, 0.8 or 0.9 as appropriate, to calculate the required salary; and.

(c) going rates for the health and education SOC 2020 occupation codes listed in Tables 3 to 5 of Appendix Skilled Occupations will be pro-rated as stated in Appendix Skilled Occupations; and

(d) the applicant's full weekly hours will be included when checking their salary against the going rate, even if they work more than 48 hours a week.

Transitional arrangements for salary on the Skilled Worker route

SW 14.5. If the applicant is applying for permission to stay or settlement, the applicant was granted permission as a Tier 2 (General) Migrant and has had continuous permission as a Skilled Worker ever since, the following transitional arrangements apply:

(a) if the date of application is before 1 December 2026 salary may also include allowances (the other restrictions in SW 14.20 also apply), providing the following conditions are met:

- (i) the applicant is applying to work for the same sponsor as in their previous permission; and
- (ii) the allowances are guaranteed, will be paid for the duration of the applicant's permission, and would be paid to a local settled worker in similar circumstances, such as London weighting; and

(b) DELETED

(c) if the applicant:

- (i) was sponsored to work in one of the SOC 2010 occupation codes in the table below at the time they applied for their last permission as a Tier 2 (General) Migrant; and
- (ii) has continued to be sponsored in that SOC 2010 occupation code or an equivalent SOC 2020 occupation code ever since (whether as a Tier 2 (General) Migrant and/or as a Skilled Worker); and
- (iii) the date of application is before 1 December 2026;

the going rates in the table below apply, instead of the going rates listed in Table 2 of Appendix Skilled Occupations. These going rates are based on a 37.5-hour working week and must be pro-rated for other working patterns, based on the weekly working hours stated by the applicant's sponsor:

SOC 2010 occupation code	Equivalent SOC 2020 occupation code(s)	Going rate – options F and I	90% of going rate – option G
2113 Physical scientists	• 2114 Physical scientists	£27,190 (£13.94 per hour)	£25,000 (£12.82 per hour)

SOC 2010 occupation code	Equivalent SOC 2020 occupation code(s)	Going rate – options F and I	90% of going rate – option G
2119 Natural and social science professionals not elsewhere classified	• 2119 Natural and social science professionals not elsewhere classified • 2162 Other researchers, unspecified discipline	£27,190 (£13.94 per hour)	£25,000 (£12.82 per hour)
2311 Higher education teaching professionals	• 2162 Other researchers, unspecified discipline • 2311 Higher education teaching professionals • 2322 Education managers	£30,940 (£15.87 per hour)	£27,840 (£14.28 per hour)

SW 14.6. DELETED.

Genuineness requirement for a Skilled Worker

SW 14A.1. The applicant must:

(a) genuinely intend, and be able, to undertake the role for which they are being sponsored;
and

(b) not intend to undertake employment other than in the role for which they are being sponsored, or as otherwise permitted by SW 18.2.

Financial requirement (mandatory) for a Skilled Worker

SW 15.1. If the applicant is applying for permission to stay and has been in the UK with permission for 12 months or longer on the date of application, they will meet the financial requirement and do not need to show funds.

SW 15.2. If the applicant is applying for entry clearance, or has been in the UK for less than 12 months on the date of application, either:

- (a) the applicant must have funds of at least £1,270; or
- (b) the applicant's A-rated sponsor must certify that they will, if necessary, maintain and accommodate the applicant up to the end of the first month of their employment, to an amount of at least £1,270.

SW 15.3. If SW 15.2.(a) applies, the applicant must show that they have held the required funds for a 28-day period and as specified in Appendix Finance.

Criminal record certificate requirement (mandatory) for a Skilled Worker

SW 16.1. If the applicant is applying for entry clearance and is being sponsored for a job in any of the SOC 2020 occupation codes listed below, they must provide a criminal record certificate from the relevant authority in any country in which they have been present for 12 months or more (whether continuously or in total) in the 10 years before the date of application, and while aged 18 or over:

- 1171 Health services and public health managers and directors
- 1172 Social services managers and directors
- 1231 Health care practice managers
- 1232 Residential, day and domiciliary care managers and proprietors
- 1233 Early education and childcare services proprietors

- 2211 Generalist medical practitioners
- 2212 Specialist medical practitioners
- 2221 Physiotherapists
- 2222 Occupational therapists
- 2223 Speech and language therapists
- 2224 Psychotherapists and cognitive behaviour therapists
- 2225 Clinical psychologists
- 2226 Other psychologists
- 2229 Therapy professionals not elsewhere classified
- 2231 Midwifery nurses
- 2232 Community nurses
- 2233 Specialist nurses
- 2234 Nurse practitioners
- 2235 Mental health nurses
- 2236 Children's nurses
- 2237 Other nursing professionals
- 2251 Pharmacists
- 2252 Optometrists
- 2253 Dental practitioners
- 2254 Medical radiographers
- 2255 Paramedics
- 2256 Podiatrists
- 2259 Other health professionals not elsewhere classified
- 2312 Further education teaching professionals
- 2313 Secondary education teaching professionals
- 2314 Primary education teaching professionals
- 2315 Nursery education teaching professionals
- 2316 Special and additional needs education teaching professionals

- 2317 Teachers of English as a foreign language
- 2319 Teaching professionals not elsewhere classified
- 2321 Head teachers and principals
- 2322 Education managers
- 2323 Education advisers and school inspectors
- 2324 Early education and childcare services managers
- 2329 Other educational professionals not elsewhere classified
- 2461 Social workers
- 2462 Probation officers
- 2464 Youth work professionals
- 2469 Welfare professionals not elsewhere classified
- 3211 Dispensing opticians
- 3212 Pharmaceutical technicians
- 3213 Medical and dental technicians
- 3214 Complementary health associate professionals
- 3219 Health associate professionals not elsewhere classified
- 3221 Youth and community workers
- 3222 Child and early years officers
- 3223 Housing officers
- 3224 Counsellors
- 3229 Welfare and housing associate professionals not elsewhere classified
- 3231 Higher level teaching assistants
- 3232 Early education and childcare practitioners
- 3433 Fitness and wellbeing instructors
- 3571 Human resources and industrial relations officers
- 6111 Early education and childcare assistants

- 6112 Teaching assistants
- 6113 Educational support assistants
- 6114 Childminders
- 6117 Playworkers
- 6131 Nursing auxiliaries and assistants
- 6132 Ambulance staff (excluding paramedics)
- 6133 Dental nurses
- 6134 Houseparents and residential wardens
- 6135 Care workers and home carers
- 6136 Senior care workers

SW 16.2. The requirement in SW 16.1. does not apply if the applicant provides a satisfactory explanation why it is not reasonably practicable for them to obtain a criminal record certificate from any or all of the relevant authorities.

Decision on an application as a Skilled Worker

SW 17.1. If the decision maker is satisfied all the suitability and relevant eligibility requirements for a Skilled Worker are met, the application will be granted, otherwise the application will be refused.

SW 17.2. If the application is refused, the person can apply for an Administrative Review under Appendix AR: Administrative Review.

Period of grant for a Skilled Worker

SW 18.1. The applicant will be granted entry clearance or permission to stay until 14 days after the end date of their certificate of sponsorship (the end date of the certificate of sponsorship may be up to a maximum of 5 years after the start date of their certificate of sponsorship), subject to SW 18.1A.

SW 18.1A. If the applicant is being sponsored in the SOC 2020 occupation code “2211 Generalist medical practitioners” for General Practitioner (GP) specialty training, they will be granted entry

clearance or permission to stay until 4 months after the end date of their certificate of sponsorship.

Conditions of grant for a Skilled Worker

SW 18.2. The grant will be subject to all the following conditions:

- (a) no access to public funds; and
 - (b) work is permitted only in the job the applicant is being sponsored for, subject to (c) to (e); and
 - (c) supplementary employment is permitted, providing the person continues to work in the job for which they are being sponsored (and where the supplementary employment takes place during the 4-month period after the end date of their certificate of sponsorship referred to in SW 18.1A the requirement to continue to work for the sponsor will not apply); and
 - (d) voluntary work is permitted; and
 - (e) working out a contractual notice period is permitted, for a job the applicant was lawfully working in on the date of application; and
 - (f) study is permitted, subject to the ATAS condition in Appendix ATAS.
 - (g) DELETED
-

Settlement as a Skilled Worker

Validity requirements for settlement as a Skilled Worker

SW 19.1. A person applying for settlement as a Skilled Worker must apply online on the gov.uk website on the specified form, "Settle in the UK in various immigration categories: form SET(O)".

SW 19.2. An application for settlement as a Skilled Worker must meet all the following requirements:

- (a) any fee must have been paid; and
- (b) the applicant must have provided biometrics when required; and

- (c) the applicant must have provided a passport or other travel document which satisfactorily establishes their identity and nationality; and
- (d) the applicant must be in the UK on the date of application.

SW 19.3. The applicant must have, or have last been granted, permission as a Skilled Worker.

SW 19.4. An application which does not meet the validity requirements for settlement as a Skilled worker may be rejected as invalid and not considered.

Suitability requirements for settlement as a Skilled Worker

SW 20.1. The applicant must not fall for refusal under Part Suitability.

SW 20.2. The applicant must not be;

- (a) in breach of immigration laws, except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded; or
- (b) on immigration bail.

Eligibility requirements for settlement as a Skilled Worker

Qualifying period requirement for settlement as a Skilled Worker

SW 21.1. The applicant must have spent a continuous period of 5 years in the UK.

SW 21.2. The 5-year continuous period must consist of time with permission (not as a dependant) on any of, or any combination of, the following routes:

- (a) Skilled Worker; or
- (b) Global talent; or
- (c) Innovator Founder; or

- (d) T2 Minister of Religion; or
- (e) International Sportsperson; or
- (f) Representative of an Overseas Business; or
- (g) Tier 1, other than Tier 1 (Graduate Entrepreneur); or
- (h) Scale-up; or
- (i) permission on any other route, during the time the applicant was waiting for a decision on their application as a Skilled Worker, provided that application:
 - (i) was for permission to stay; and
 - (ii) was made between 24 January 2020 and 30 June 2021 (inclusive); and
 - (iii) was supported on the date of application by a certificate of sponsorship assigned by a licensed sponsor; and
 - (iv) was granted.

Continuous residence requirement for settlement as a Skilled Worker

SW 22.1. The applicant must meet the continuous residence requirement as set out in Appendix Continuous Residence during the period in SW 21.1.

English language requirement for settlement as a Skilled Worker

SW 22A.1. Where the date of application is on or after 26 March 2027, the applicant must, unless an exemption applies, show English language ability on the Common European Framework of Reference for Languages in speaking and listening to at least level B2.

SW 22A.2. The applicant must show they meet the English language requirement as specified in Appendix English Language.

Knowledge of life in the UK requirement for settlement as a Skilled Worker

SW 23.1. The applicant must meet the knowledge of Life in the UK requirement as set out in Appendix KOL UK.

Sponsorship and salary requirement for settlement as a Skilled Worker

SW 24.1. The sponsor in the applicant's most recent permission must still be approved by the Home Office to sponsor Skilled Workers on the date of decision.

SW 24.2. The sponsor must confirm that they still require the applicant to work for them for the foreseeable future, and that the applicant is paid, and will be paid for the foreseeable future, at least the salary in SW 24.3.

SW 24.3. Subject to SW 24.4, the applicant's salary must equal or exceed both salary requirements shown in the relevant row of the table below.

	Applicant's circumstances	General salary	Going rate
A	All cases where rows B to E do not apply	Salary of at least £41,700 per year	At least the relevant going rate listed in Table 1 or Table 1a of Appendix Skilled Occupations
B	The applicant was sponsored in their most recent permission for a job in Appendix Immigration Salary List, and rows C to E do not apply.	Salary of at least £33,400 per year	At least the relevant going rate listed in Table 1 or Table 1a of Appendix Skilled Occupations
C	The applicant meets the requirements of	Salary of at least	At least the relevant going rate listed in

Applicant's circumstances	General salary	Going rate
SW 4.2(b), save that references to being sponsored should be read as meeting the requirements in SW 24.1. to SW 24.2, and rows D and E do not apply.	£31,300 per year	Tables 2 to 2a of Appendix Skilled Occupations
D The applicant was sponsored in their most recent permission for a job in either: • Appendix Immigration Salary List (or the previous Appendix Shortage Occupation List), and the applicant meets the requirements of SW 4.2(b), save that references to being sponsored should be read as meeting the requirements in SW 24.1. to SW 24.2; or • a health or education SOC 2020 occupation code listed in Table 3 of Appendix Skilled Occupations (or a related SOC 2010 occupation code shown in that	Salary of at least £25,000 per year	At least the relevant going rate listed in Tables 2 to 5 of Appendix Skilled Occupations

Applicant's circumstances	General salary	Going rate
table); and, in either case, row E does not apply.		
E The 5-year qualifying period for settlement includes time as a Tier 2 (General) Migrant in which the applicant was sponsored for a job in one of the following SOC 2010 occupation codes: • 2111 Chemical scientists • 2112 Biological scientists and biochemists • 2113 Physical scientists • 2114 Social and humanities scientists • 2119 Natural and social science professionals not elsewhere classified • 2150 Research and development managers • 2311 Higher education teaching professionals	Salary of at least £25,000 per year	At least the going rate in the table at SW 14.5(c), if the applicant has continued to be sponsored in that SOC 2010 occupation code, or the equivalent SOC 2020 occupation code shown in Table 2 of Appendix Skilled Occupations, ever since. At least the relevant going rate in Tables 2 to 5 of Appendix Skilled Occupations, in other cases.

SW 24.4. Salary under the table in SW 24.3 is subject to the following:

(a) salary will be considered as set out in SW 14.1. to SW 14.5. (and in SW 14.3., references to the salary thresholds of £41,700, £33,400, £31,300 or £25,000 per year should be read as including references in the table in SW 24.3 above); and

(b) if the applicant is currently absent from work for one of the reasons set out in Part Suitability paragraph SUI 36.1., or has returned from such an absence within the month before the date of application, consideration will be based on their salary on their return to work, as stated by their sponsor.

Decision on an application for settlement as a Skilled Worker

SW 25.1. If the decision maker is satisfied all the suitability and eligibility requirements for settlement as a Skilled Worker are met, the applicant will be granted settlement, otherwise the application will be refused.

SW 25.2. If the application is refused, the person can apply for an Administrative Review under Appendix AR: Administrative Review.

Dependants of a Skilled Worker

Validity requirements for a dependent partner or dependent child of a Skilled Worker

SW 26.1. A person applying for entry clearance or permission to stay as a dependent partner or dependent child of a Skilled Worker must apply online on the gov.uk website on the specified form as follows:

Location of Partner or Child	Specified form
Applicant outside the UK	Dependant partner visa Dependant child visa

Location of Partner or Child**Specified form**

Applicant inside the UK

Dependant partner
Dependant child

SW 26.2. An application for entry clearance or permission to stay as a partner or child of a Skilled Worker must meet all the following requirements:

- (a) any fee and Immigration Health Charge must have been paid; and
- (b) the applicant must have provided biometrics when required; and
- (c) the applicant must have provided a passport or other travel document which satisfactorily establishes their identity and nationality; and
- (d) the applicant must be applying as partner or child of a person (P) who:
 - (i) has made a valid application for entry clearance or permission to stay in the UK on the Skilled Worker route that has not been decided; or
 - (ii) has entry clearance or permission to stay on the Skilled Worker route; or
 - (iii) is settled or has become a British citizen, providing that P had permission on the Skilled Worker route when they settled and the applicant either had permission as their partner or child at that time, or the applicant is applying as a child of P and the applicant was born in the UK before P settled.

SW 26.3. If the applicant is applying as a dependent partner they must be aged 18 or over on the date of application.

SW 26.4. If applying for permission to stay, the applicant must be in the UK on the date of application.

SW 26.4ZA. If applying for permission to stay, the applicant must not have, or have last been granted, permission:

- (a) as a Visitor; or

- (b) as a Short-term Student; or
- (c) as a Parent of a Child Student; or
- (d) as a Seasonal Worker; or
- (e) as a Domestic Worker in a Private Household; or
- (f) outside the Immigration Rules.

SW 26.4A. An applicant who is applying for permission to stay and has, or last had, permission as a Student, must fulfil one of the Conditions A or B below on the date of application:

- (a) Condition A: the applicant must have completed the course of study for which the Confirmation of Acceptance for Studies was assigned (or a course to which ST 27.3 of Appendix Student applies); or
- (b) Condition B: the applicant must:
 - (i) be studying a full-time course of study leading to the award of a PhD with a higher education provider which has a track record of compliance; and
 - (ii) have completed at least 24 months of study on that course.

SW 26.5. An application which does not meet all the validity requirements for a partner or child of a Skilled Worker may be rejected as invalid and not considered.

Suitability requirements for a dependent partner or dependent child of a Skilled Worker

SW 27.1. The applicant must not fall for refusal under Part Suitability.

SW 27.2. If applying for permission to stay the applicant must not be:

- (a) in breach of immigration laws, except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded; or
- (b) on immigration bail.

Eligibility requirements for a dependent partner or dependent child of a Skilled Worker

Entry requirement for a dependent partner or dependent child of a Skilled Worker

SW 28.1. A person seeking to come to the UK as a dependent partner or dependent child of a Skilled Worker must apply for and obtain entry clearance as a dependent partner or dependent child of a Skilled Worker before they arrive in the UK.

SW 28.2. A person applying for entry clearance as the partner or child of a Skilled Worker must, if Appendix Tuberculosis applies, provide a valid medical certificate confirming that they have undergone screening for active pulmonary tuberculosis and that this tuberculosis is not present in them.

Relationship requirement for a dependent partner of a Skilled Worker

SW 29.1. Subject to SW 29.1A, the applicant must be the partner of a person (P) where one of the following applies:

- (a) P has permission on the Skilled Worker route; or
- (b) P is, at the same time, applying for (and is granted) entry clearance or permission on the Skilled Worker route; or
- (c) P is settled or has become a British citizen, providing P had permission on the Skilled Worker route when they settled and the applicant had permission as P's partner at that time.

SW 29.1A. In SW 29.1(a) and (b), P must have (or be applying for) entry clearance or permission as a Skilled Worker sponsored for a job in Table 1, Table 2 or Table 3 of Appendix Skilled Occupations, unless P:

- (a) was (or is being) granted entry clearance or permission as a Skilled Worker, sponsored in:

- (i) the SOC 2010 occupation code “6145 Care workers and home carers” or “6146 Senior care workers”, under the Rules in force before 11 March 2024; or
 - (ii) a SOC 2020 occupation code listed in Table 1a, Table 2aa, Table 2a or Table 3a (or an equivalent SOC 2010 occupation code listed in any of those tables), other than “6135 Care workers and home carers” or “6136 Senior care workers”, under the Rules in force before 22 July 2025; or
 - (iii) the SOC 2020 occupation code “3314 Prison service officers (below principal officer)” and the application is for permission to stay;
- and

(b) since the grant of entry clearance or permission in (a), P has continuously had permission as a Skilled Worker, sponsored in one or more of these SOC 2010 occupation codes or SOC 2020 occupation codes (except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded).

SW 29.2. The requirements of Appendix Relationship with Partner must be met.

SW 29.3. DELETED

SW 29.4. DELETED

Relationship requirement for a dependent child of a Skilled Worker

SW 30.1. DELETED.

SW 30.2 DELETED.

SW 30.3. DELETED

Care requirement for a dependent child of a Skilled Worker

SW 31.1. DELETED.

Age requirement for a dependent child of a Skilled Worker

SW 32.1. DELETED.

SW 32.2. DELETED.

Requirements for a dependent child of a Skilled Worker

SW 32A.1. Subject to SW 32A.2, the applicant must meet the following requirements for a dependent child in Appendix Children:

- (a) relationship requirement: entry clearance and permission to stay; and
- (b) care requirement; and
- (c) age and independent life requirement.

SW 32A.2. In Appendix Children, where CHI 3.1 (a) or (b) refer to the applicant applying as the child of a person (P), P must be a Skilled Worker sponsored for a job in Table 1, Table 2 or Table 3 of Appendix Skilled Occupations, unless:

- (a) P was (or is being) granted entry clearance or permission as a Skilled Worker, sponsored in:
 - (i) the SOC 2010 occupation code “6145 Care workers and home carers” or “6146 Senior care workers”, under the Rules in force before 11 March 2024; or
 - (ii) a SOC 2020 occupation code listed in Table 1a, Table 2aa, Table 2a or Table 3a (or an equivalent SOC 2010 occupation code listed in any of those tables), other than “6135 Care workers and home carers” or “6136 Senior care workers”, under the Rules in force before 22 July 2025; or
 - (iii) the SOC 2020 occupation code “3314 Prison service officers (below principal officer)” and the application is for permission to stay;

and since that grant of entry clearance or permission, P has continuously had permission as a Skilled Worker, sponsored

in one or more of these SOC 2010 occupation codes or SOC 2020 occupation codes (except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded); or

(b) the applicant was born in the UK; or

(c) P is the sole surviving parent or has sole responsibility for the applicant and this is an application for permission to stay; or

(d) P has joint responsibility for the applicant with another Skilled Worker who is also sponsored for a job in one of the occupation codes referred to in (a) and this is an application for permission to stay.

Financial requirement for a dependent partner or dependent child of a Skilled Worker

SW 33.1. If the applicant is applying for permission to stay and has been living in the UK with permission for 12 months or longer on the date of application, they will meet the financial requirement and do not need to show funds.

SW 33.2. If the applicant is applying for entry clearance, or has been in the UK for less than 12 months on the date of application, either:

(a) funds of at least the amount required in SW 33.3 must be held collectively by one or more of the following:

i) the applicant; and

ii) the Skilled Worker (P); and

iii) if the applicant is applying as a dependent child, their parent who is lawfully present in the UK or being granted entry clearance, or permission to stay, at the same time;

or

(b) the Skilled Worker's A-rated sponsor must certify that they will, if necessary, maintain and accommodate the dependent partner and/or any dependent child as well as the Skilled

Worker, up to the end of the first month of each of their grants of permission, to at least the amounts required in SW 33.3.

SW 33.3. The funds required are:

- (a) £285 for a dependent partner in the UK, or applying for entry clearance; and
- (b) £315 for the first dependent child in the UK, or applying for entry clearance; and
- (c) £200 for any other dependent child in the UK, or applying for entry clearance.

SW 33.4. If SW 33.2.(a) applies, the funds held for the applicant must be held in addition to any funds required for the Skilled Worker to meet the financial requirement and any other dependants in the UK or applying at the same time.

SW 33.5. If SW 33.2.(a) applies, the funds must have been held for a 28-day period and as specified in Appendix Finance.

Criminal record certificate requirement for a dependent partner of a Skilled Worker

SW 34.1. Where a Skilled Worker is being sponsored for a job in an SOC 2020 occupation code listed in SW 16.1, an applicant applying for entry clearance as the partner of the Skilled Worker must provide a criminal record certificate from the relevant authority in any country in which they have been present for 12 months or more (whether continuously or in total) in the 10 years before the date of application, and while aged 18 or over.

SW 34.2. The requirement in SW 34.1. does not apply if the applicant provides a satisfactory explanation why it is not reasonably practicable for them to obtain a criminal record certificate from any or all of the relevant authorities.

Decision on an application as a dependent partner or dependent child of a Skilled Worker

SW 35.1. If the decision maker is satisfied that all the suitability and eligibility requirements for a

dependent partner or dependent child of a Skilled Worker are met, the application will be granted, otherwise the application will be refused.

SW 35.2. If the application is refused, the person can apply for an Administrative Review under Appendix AR: Administrative Review.

Period of grant for a dependent partner or dependent child of a Skilled Worker

SW 36.1. A partner will be granted:

- (a) permission which ends on the same date as their partner's permission as a Skilled Worker; or
- (b) 3 years' permission if the Skilled Worker was (or is being) granted settlement as a Skilled Worker.

SW 36.2. A child will be granted permission which ends on the same date as whichever of their parents' permission ends first, unless both parents have (or are being granted) settlement or British Citizenship, in which case the child will be granted permission for 3 years.

Conditions of grant for a dependent partner or dependent child of a Skilled Worker

SW 36.3. The grant will be subject to all the following conditions:

- (a) no access to public funds; and
- (b) work (including self-employment and voluntary work) is permitted, except as a professional sportsperson (including as a sports coach); and
- (c) study is permitted, subject to the ATAS condition in Appendix ATAS, if the applicant is over the age of 18.
- (d) DELETED

Settlement as a dependent partner or dependent child of a Skilled Worker

Validity requirements for settlement as a dependent partner or dependent child of a Skilled Worker

SW 37.1. A person applying for settlement as a dependent partner or dependent child of a Skilled Worker must apply online on the gov.uk website on the specified form, "Settle in the UK in various immigration categories: form SET(O)".

SW 37.2. An application for settlement as a partner or child of a person on the Skilled Worker route must meet all the following requirements:

- (a) any fee must have been paid; and
- (b) the applicant must have provided biometrics when required; and
- (c) the applicant must have provided either a passport or other travel document which satisfactorily establishes their identity and nationality; and
- (d) the applicant must be in the UK on the date of application; and
- (e) the applicant must be applying as a partner or child of a person (P) who:
 - (i) has made a valid application for settlement in the UK on the Skilled Worker route and that application has not been decided; or
 - (ii) is settled or has become a British citizen, provided that P had permission on the Skilled Worker route when they settled and the applicant either had permission as their partner or child at that time, or the applicant is applying as a child of P and the applicant was born in the UK before P settled.

SW 37.3. An application which does not meet the validity requirements for settlement as a partner or child of a Skilled Worker may be rejected as invalid and not considered.

Suitability requirements for settlement as a dependent partner or dependent child of a Skilled Worker

SW 38.1. The applicant must not fall for refusal under Part Suitability.

SW 38.2. The applicant must not be:

- (a) in breach of immigration laws, except that where the Exceptions for overstayers section of Part Suitability applies, that period of overstaying will be disregarded; or
- (b) on immigration bail.

Eligibility requirements for settlement as a dependent partner or dependent child of a Skilled Worker

Relationship requirement for settlement for a dependent partner or dependent child of a Skilled Worker

SW 39.1. The applicant must be the partner or child of a person (P) where one of the following applies:

- (a) P is, at the same time, being granted settlement as a Skilled Worker; or
- (b) P is settled in the UK or has become a British citizen, providing P had permission as a Skilled Worker when they settled and the applicant either:
 - i) had permission as P's partner or child at that time; or
 - ii) is applying as a child of P, and was born in the UK before P settled.

SW 39.2. The applicant must either:

- (a) have last been granted permission as a dependent partner or dependent child of the person (P) in SW 39.1; or
- (b) have been born in the UK and be applying as a child of the person (P) in SW 39.1.

SW 39.3. If applying as a partner, the requirements of Appendix Relationship with Partner must be met.

SW 39.4. If applying as a child, the applicant must meet the relationship requirement for settlement in Appendix Children.

Care requirement for settlement as a dependent child of a Skilled Worker

SW 40.1. DELETED.

Age requirement for settlement as a dependent child of a Skilled Worker

SW 41.1. DELETED.

SW 41.2. DELETED.

Requirements for settlement as a dependent child of a Skilled Worker

SW 41A.1. The applicant must meet the following requirements for a dependent child in Appendix Children:

- (a) care requirement; and
- (b) age and independent life requirement.

Qualifying period requirement for settlement as a dependent partner of a Skilled Worker

SW 42.1. The applicant must have spent a continuous period of 5 years in the UK with permission as a dependent partner of the person (P) in SW 39.1.

Continuous residence requirement for settlement as a dependent partner of a Skilled Worker

SW 43.1. The applicant must meet the continuous residence requirement as set out in Appendix Continuous Residence during the period in SW 42.1.

English language requirement for settlement as a dependent partner or dependent child of a Skilled Worker

SW 44.1. Unless an exemption applies, the applicant must:

- (a) Where the date of application is before 26 March 2027, the applicant must, unless an exemption applies, show English language ability on the Common European Framework of Reference for Languages in speaking and listening to at least level B1; or
- (b) Where the date of application is on or after 26 March 2027, the applicant must, unless an exemption applies, show English language ability on the Common European Framework of Reference for Languages in speaking and listening to at least level B2.

SW 44.2. The applicant must show they meet the English language requirement as specified in Appendix English Language.

Knowledge of life in the UK requirement for settlement as a dependent partner or dependent child of a Skilled Worker

SW 45.1. If the applicant is aged 18 or over on the date of application, they must meet the knowledge of Life in the UK requirement as set out in Appendix KOL UK.

Decision on an application for settlement as a dependent partner or dependent child of a Skilled Worker

SW 46.1. If the decision maker is satisfied all the suitability and eligibility requirements are met for settlement as a dependent partner or dependent child of a Skilled Worker, the application will be granted, otherwise the application will be refused.

SW 46.2. If the application is refused the person can apply for an Administrative Review under Appendix AR: Administrative Review.



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